

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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JOSE BONILLA,

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE QUINN SEALEY, TAX
REGISTRY #949648 OF THE NARCOTIC BOROUGH
MANHATTAN NORTH AND POLICE OFFICERS
JOHN AND JANE DOE (1-10) OF THE NARCOTIC
BOROUGH MANHATTAN NORTH,

222 E 119th St., Apt. 3B
New York, NY 10035

Defendants,

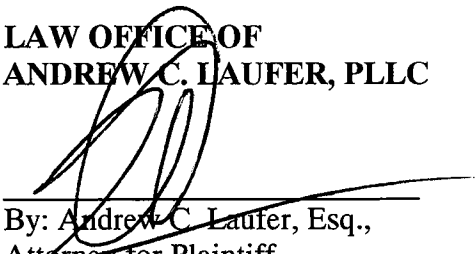
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
September 14, 2021

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
264 W 40th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

DETECTIVE QUINN SEALEY, TAX REGISTRY #949648
OF THE NARCOTIC BOROUGH MANHATTAN NORTH
2768 8th Avenue
New York, New York 10039

POLICE OFFICERS JOHN AND JANE DOE (1-10)
OF THE NARCOTIC BOROUGH MANHATTAN NORTH
2768 8th Avenue
New York, New York 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
JOSE BONILLA,

VERIFIED COMPLIANT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE QUINN SEALEY, TAX
REGISTRY #949648 OF THE NARCOTIC BOROUGH
MANHATTAN NORTH AND POLICE OFFICERS
JOHN AND JANE DOE (1-10) OF THE NARCOTIC
BOROUGH MANHATTAN NORTH,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of New York, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH

MANHATTAN NORTH, were and still are employed with the New York City POLICE DEPARTMENT.

5. That prior to the institution of this action, on July 28, 2020, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That the CITY OF NEW YORK failed to notice and hold examination pursuant to Municipal Law 50H within 90 days of plaintiff's, then claimant, filing of his notice of claim.

7. That at all times herein mentioned, DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about July 9th, 2020, Plaintiff Jose Bonilla was lawfully within his apartment at 222 East 119th Street, in the County, City, and State of New York.

11. At or about 6:25 a.m., plaintiff was asleep in his bed when defendants, fully dressed in tactical gear, violently smashed his door down and aimed automatic weapons at him and his son.

12. Defendants then grabbed and manhandle the plaintiff bringing him to the ground where he was handcuffed.

13. At no time did defendants offer or present a warrant to the plaintiff demonstrating their right to enter and search the apartment.

14. Plaintiff apartment was ransacked. A number of personal items were taken by defendants, including but not limited to, 2 Rolex watches, a gold chain, a laptop, and a valuable Mickey Mantle baseball card which was given to the plaintiff by his father.

15. Plaintiff also possessed approximately \$31,000 in cash, lawfully recovered disability payment arrears, which was unlawfully seized by the defendants.

16. Plaintiff never received back the aforementioned personal property.

17. The individual Defendants DETECTIVE QUINN SHEALY OF THE 25TH PRECINCT, AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE 25TH PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and New York state law, including without limitation, deprivation of the following constitutional rights: (a) freedom from the excessive use of force; (b) freedom from conversion of his personal property; (c) freedom from abuse of process; and (d) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR CONVERSION OF PERSONAL PROPERTY PURSUANT TO 42 U.S.C § 1983 AND NEW YORK STATE LAW

18. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

19. That on or about July 9th, 2020, Defendants DETECTIVE QUINN SEALEY, TAX

REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH, jointly and severally in his capacity as a police officer, wrongfully took, seized, and converted the personal property of the Plaintiff without cause or legal justification to do so. At no time did Defendants have legal cause to take, seize, or convert Plaintiff's personal property, nor did Plaintiff consent to these unlawful actions nor was they privileged by law.

20. As a result of the aforementioned actions, Defendant DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH deprived Plaintiff of the right to his personal property secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments, and New York State law.

21. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

22. That by reason of the conversion of Plaintiff's personal property, Plaintiff was subjected to great personal and economic loss and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much emotional pain and suffering, and to sustain economic loss, and was otherwise damaged.

23. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, and under New York state law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

24. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

25. All of the acts and omissions by the individual Defendants, DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

26. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

27. Defendants DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH, assaulted and converted Plaintiff's personal property in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said assault and unlawful taking would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

28. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

29. On or about July 9th, 2020, Defendants did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner and unlawful take his personal property.

30. The Plaintiff was assaulted, and his personal property unlawfully seized without the Defendants' possessing probable cause to do so.

31. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.
- d. Freedom from conversion of his personal property.

32. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

33. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest and seizure of personal property, should be based upon probable cause.

34. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON ASSAULT,
BATTERY, AND THE USE OF EXCESSIVE FORCE UPON PLAINTIFF

35. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

36. That on or about July 9th, 2020, Defendants DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH, jointly and severally in his capacity as a police officer, wrongfully entered, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

37. As a result of the aforementioned actions, Defendant DETECTIVE QUINN SHEALY OF THE 25TH PRECINCT, AND POLICE OFFICERS JOHN AND JANE DOE (1-10) OF THE 25TH PRECINCT deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

38. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against his person secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments.

39. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

40. That by reason of the assault and battery of the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit

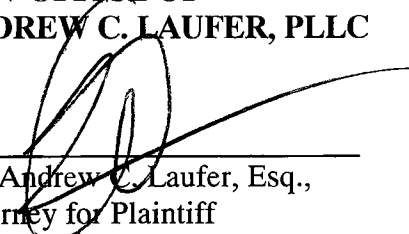
and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

41. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, and under New York state law.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
September 14, 2021

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

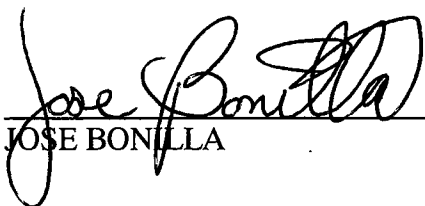
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

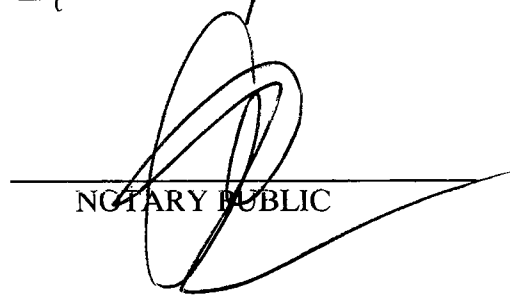
JOSE BONILLA, individually, being duly sworn, deposes and states as follows:

I am the Plaintiff in the above-entitled action and therefore am fully familiar with the circumstances surrounding this situation. I have read the foregoing Summons & Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

Dated: New York, New York
 09-04, 2021


JOSE BONILLA

Sworn to before me on the
4th day September, 2021



NOTARY PUBLIC

Andrew Chenille
Notary Public, State of New York
No. 01LA5087818
Qualified in Nassau County
Commission Expires Nov. 02, 2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index: Year:

JOSE BONILLA,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE QUINN SEALEY, TAX REGISTRY #949648 OF THE NARCOTIC
BOROUGH MANHATTAN NORTH AND POLICE OFFICERS JOHN AND
JANE DOE (1-10) OF THE NARCOTIC BOROUGH MANHATTAN NORTH,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer